

District-Barishal.

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION,
(CIVIL REVISIONAL JURISDICTION)**

Present:

Mr. Justice Md. Toufiq Inam

Civil Revision No. 801 of 2025.

Titu Sikder

----- Plaintiff/Petitioner-Petitioner.

-Versus-

Md. Babul Kazi and others

----- Defendant-Opposite Parties.

Mr. Tapan Kumar Bepary, with

Mr. Bulbul Das, Advocates

----- For the Plaintiff/Petitioner-Petitioner.

Mr. Modersher Ali Khan, Advocate

----- For the Defendant-Opposite Party Nos. 1-4.

Heard On: 30.07.2025 and 02.07.2025.

And

Judgment Delivered On: 8th Day of July 2025

Md. Toufiq Inam, J.

Upon granting leave, this Rule was issued at the instance of the plaintiff-petitioner, calling upon the opposite parties to show cause as to why the judgment and order dated 17.02.2025 passed by the learned District Judge, Barishal in Civil Revision No. 113 of 2024, affirming Order No. 22 dated 17.10.2024 passed by the learned Senior Assistant Judge, Sadar, Barishal in Title Suit No. 421 of 2023, whereby the trial court rejected the first local investigation report and directed issuance of a new commission, should not be set aside, or why such other or further orders should not be passed as to this Court may seem fit and proper.

The material facts necessary for disposal of this Rule, in brief, are as follows:

The plaintiff instituted a suit for permanent injunction and partition in respect of land described in the schedule to the plaint, specifically seeking demarcation of 0.25 decimals of land claimed to be in his exclusive possession and ownership. The suit land falls under B.S. Khatian No. 121 and B.S. Dag No. 386 covering 0.25 acres, which was derived from S.A. Khatian No. 82 originally measuring 0.30 acres in S.A. Dag No. 441.

The trial court, upon an application filed by the plaintiff, appointed a local commissioner under Order XXVI Rule 9 of the Code of Civil Procedure. The appointed Advocate Commissioner submitted his report on 03.04.2024. This report focused solely on the plaintiff's claimed 0.25 decimals but failed to include any finding or observation regarding the remaining 0.05 acres of land forming part of the khatian, despite the fact that the suit involves partition and injunction over the entire holding.

The defendant-opposite parties objected to the report on the ground that it was incomplete and failed to encompass the entire suit land. They contended that the omission was substantial and that a fresh investigation was necessary to address the full scope of the dispute. The trial court, upon hearing both sides, accepted the objection and, by order dated 17.10.2024, rejected the original report and directed the issuance of a fresh commission.

The plaintiff-petitioner challenged this order in revision before the learned District Judge. The revisional court, having examined the record, found no illegality or material irregularity and accordingly upheld the trial court's decision. Aggrieved thereby, the plaintiff

moved this Court under Section 115(4) of the Code of Civil Procedure, and upon granting leave, the present Rule was issued.

Mr. Tapan Kumar Bepary, the learned Advocate appearing for the plaintiff-petitioner, submits that the commissioner's report dated 03.04.2024 clearly demarcated the 0.25 decimals of land claimed by the plaintiff and confirmed his possession over the same. He argues that since the commission was appointed at the instance of the plaintiff and the findings were favourable to him, rejection of the report was unjustified and legally untenable.

He further submits that the objection raised by the defendants was vague and lacked merit, and that directing a fresh commission would result in unnecessary expense and delay. He argues that the report did not suffer from any legal infirmity justifying rejection, and that the revisional court failed to consider that the commissioner committed no jurisdictional error. In support of his arguments, he relies on the decisions reported in 47 DLR (HCD) 587 and 14 BLA (HCD) 176.

On the other hand, Mr. Modersher Ali Khan, the learned Advocate appearing for the defendant-opposite parties, submits that the B.S. Khatian in question covers 0.30 acres of land, but the commissioner's report addressed only 0.25 decimals. He contends that the report failed to examine the remaining 0.05 acres and did not reflect the status, nature, or possession of the full suit land. Since the suit involves claims of partition and injunction, such omission renders the report incomplete and unreliable for adjudicating the claims of all co-sharers.

He argues that the trial court rightly exercised its discretion in rejecting the incomplete report and ordering a fresh and comprehensive local investigation. The revisional court, too, correctly affirmed that decision. No illegality or material irregularity, he asserts, has been demonstrated that would justify interference under Section

115(4) of the Code. Referring to Annexure-II of the counter-affidavit, Mr. Khan also points out that a new local investigation has already been carried out and a fresh report has been submitted in compliance with the trial court's direction. As such, the impugned order has been acted upon and the Rule has become infructuous.

Having heard the learned Advocates for the parties and upon perusal of the revisional application along with all connected materials on record, including the impugned orders of the courts below, this Court is of the view that the following issues fall for consideration:

1. Whether the trial court and revisional court acted illegally or with material irregularity in rejecting the first commission report and allowing a new commission
2. Whether the impugned orders have caused any prejudice or irreparable injury to the petitioner

It is well settled that the purpose of appointing a local commissioner under Order XXVI Rule 9 of the Code of Civil Procedure is to assist the Court in elucidating matters in controversy, particularly in cases involving boundaries, demarcation, or possession. The commissioner's report is not binding upon the Court but merely a tool to aid in the adjudication process.

In the present case, the commission was appointed to report on the physical demarcation and possession status of land covered by B.S. Khatian No. 121 measuring 0.30 acres. However, the report submitted by the commissioner on 03.04.2024 addressed only the 0.25 decimals claimed by the plaintiff and failed to mention or verify the status of the remaining 0.05 acres of land. While the plaintiff may have an interest in 0.25 decimals, the suit encompasses the entire khatian land,

and any partition must account for the whole property, not just the portion claimed by one co-sharer.

A perusal of the report reveals that it was partial in scope and did not reflect the complete subject matter of the suit. This omission is not a mere technical defect but a substantial lapse that undermines the utility of the report in a partition proceeding. A report that fails to consider the claims or rights of all co-sharers cannot serve as a reliable basis for determining the boundaries or possession of the suit land.

The trial court therefore correctly exercised its discretion in rejecting the first report and directing a fresh commission. The revisional court, in affirming the same, committed no error of law or jurisdictional irregularity. The petitioner has failed to establish any exceptional circumstance that would warrant interference by this Court under Section 115(4) of the Code.

The argument that the first report supports the petitioner's claim may have limited value in an injunction-only suit. However, in a suit for partition, the interests of all co-sharers must be considered. A report focused solely on the plaintiff's portion cannot be deemed sufficient or conclusive to resolve the broader issues involved in the suit.

The petitioner has also not demonstrated that the impugned orders caused any prejudice or irreparable injury. On the contrary, a fresh and complete local investigation ensures fair adjudication of the respective claims and serves the ends of justice. Furthermore, as evidenced by Annexure-II to the counter-affidavit, a fresh commission has already been carried out and the report submitted. In these circumstances, the Rule has lost its purpose and has become infructuous.

In view of the foregoing discussion, the Rule is hereby discharged.
There will be no order as to costs.

Let a copy of this judgment be forwarded to the courts concerned at once.

(Justice Md. Toufiq Inam)

Ashraf /ABO.